

473(b), in terms of the motion for reconsideration, the argument is based upon their reminding the court of its inherent authority to correct their own errors. (*Id* at 1108-1109.) However, in this circumstance the court declines to reconsider its prior ruling regarding the sustaining of the demurrer to the First Amended Complaint without leave to amend.

Plaintiffs' motion also moves to vacate the order under CCP 473(b), which states "The court may, upon any terms as may be just, relieve a party of the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party **through the party's mistake, inadvertence, surprise, or excusable neglect.**" (CCP 473(b), emphasis added.) Here, Plaintiffs' motion does not address any type of error committed by Plaintiffs, but instead highlights their belief of the court's error in application of law in the demurrer to the First Amended Complaint.

Motion to Vacate Order Sustaining Demurrer to the First Amended Complaint Without Leave to Amend is DENIED.

Case Management Conference is continued to September 10, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507284	KORETOFF VS THE BIG DEAL SOLAR INC.	MOTION TO SET ASIDE DEFAULT

Tentative Ruling: A motion for relief from default must be filed within six months of the clerk's entry of default and also within a "reasonable time" after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.)

The application for relief "shall be accompanied by a copy of the answer or other pleading proposed to be filed ... otherwise the application shall not be granted." (C.C.P. § 473(b).) If the order to be set aside is the result of a failure to provide discovery responses, for example, the application must be accompanied by verified responses to the discovery requests. (*Rodriguez v. Brill* (2015) 234 Cal.App.4th 715, 729.)

Defendant has failed to procedurally comply with CCP 473(b) in failing to submit a copy of an answer or other responsive pleading. Additionally, the motion to set aside default is signed "The Big Deal Solar, Inc. Defendant, Self-Represented". A corporation is not permitted to represent itself in California. *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141.

Motion to Set Aside Default DENIED.

Case Management Conference on July 9, 2026 is VACATED.

OSC re Status of Representation of The Big Deal Solar, Inc. is VACATED.

OSC re default judgment is set for December 22, 2026.